

26IWUD01152 26IWUD01152

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-08-31

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Case Number: 26IWUD01152 Hearing Date: August 31, 2026 Dept: 8

Tentative:

The motion to quash is granted. Code of Civil Procedure section 1167, subdivision (a), requires a summons in an unlawful detainer action "be in the form specified in [s]ection 412.20 except that when the defendant is served, the defendant's response shall be filed within 10 days, excluding Saturdays and Sundays and other judicial holidays, after the complaint is served upon the defendant." "Service of a substantially defective summons does not confer jurisdiction over a party." (Greene v. Municipal Court (1975) 51 Cal.App.3d 446, 452.)

The summons served in this action was defective because it notified the Defendants under the former section 1167 that they had only five days to respond to the complaint. The statute was amended effective January 1, 2025 to allow 10 days for such response. (See Assembly Bill No. 2347 (Reg. Sess. 2023-2024).) "[S]ince the summons is substantially defective in illegally purporting to shorten defendants' time to plead, the court did not acquire jurisdiction over the parties served with it." (Greene v. Municipal Court, supra, 51 Cal.App.3d at p. 452; see also Pousson v. Superior Court In and For San Diego County (1958) 165 Cal.App.2d 750, 752-753 ["the notice must apprise the party whose rights are to be affected, of what is required of him, and the consequences that may follow if he neglect to defend the action"].)